

BEFORE THE
FEDERAL MARITIME COMMISSION

Docket No. 25-07

PKDC, LLC,
Complainant,

v.

COSCO SHIPPING LINES CO., LTD.,
Respondent.

JOINT MOTION TO EXTEND SCHEDULING ORDER

Pursuant to 46 C.F.R. §§ 502.69 and 502.102 of the Federal Maritime Commission’s Rules of Practice and Procedure, Complainant PKDC, LLC (“Complainant” or “PKDC”) and Respondent COSCO Shipping Lines Co. Ltd. (“Respondent” or “COSCO”), by its undersigned counsel, hereby submits this Joint Motion to Extend Deadlines (“Motion”), respectfully requesting an extension of the remaining deadlines set forth in the Presiding Officer’s Scheduling Order, as detailed herein, by 45 days.¹ This request is largely motivated by an unexpected, serious illness impacting Complainant’s lead counsel, requiring counsel to bring additional attorneys onto this matter and bring them up to speed. Respondent is amenable to this extension, under the circumstances, and would not be prejudiced by such request.²

¹ Some of the deadlines proposed herein are for slightly more than 45 days, due to the revised date falling on a weekend or holiday.

² The Parties note that as of October 1, 2025, the Commission has been shut down due to a lapse in appropriations and that during this shutdown, the Commission cannot accept filings nor can any relief be granted. The Parties are aware of the Presiding Officer’s instructions that they proceed as best they are able until such time the Commission re-opens. They have therefore agreed on the

I. THE CURRENT SCHEDULE

On July 29, 2025, the Presiding Officer entered the Scheduling Order, which includes deadlines affecting this Motion as follows:

October 8, 2025	Complete production of documents and electronically stored information (ESI) in response to initial requests for production of documents
October 8, 2025	Fact depositions may commence
October 10, 2025	Disclosure of Complainant's expert reports, if any
October 22, 2025	Last day parties may serve supplemental discovery requests
October 31, 2025	Complete depositions of fact witnesses
November 10, 2025	Disclosure of Respondent's rebuttal expert reports, if any
November 12, 2025	Expert witness depositions may commence
November 24, 2025	Close of all discovery
January 5, 2026	Complainant's brief, proposed findings of fact, and appendix
February 6, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
February 20, 2026	Complainant's reply brief and responses to proposed findings of fact

II. GOOD CAUSE EXISTS TO EXTEND THE CURRENT DEADLINES

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." Good cause exists for the extension requested herein, as lead counsel for Complainant, Andrew Margolis, has recently suffered serious health concerns and

proposed schedule and will adhere to it until the Commission re-opens and they have been otherwise instructed by the Presiding Officer.

as a result, has had to withdraw from representation in this proceeding. Jason Kenner, Complainant's co-counsel, has requested this 45-day extension to allow him the opportunity to bring himself and his associates up to speed on this matter. Pursuant to 46 C.F.R. § 502.71, counsel for both parties have conferred and are submitting the instant motion together. The parties request the following amended schedule:

November 24, 2025	Complete production of documents and electronically stored information (ESI) in response to initial requests for production of documents
November 24, 2025	Fact depositions may commence
November 26, 2025	Disclosure of Complainant's expert reports, if any
December 8, 2025	Last day parties may serve supplemental discovery requests
December 15, 2025	Complete depositions of fact witnesses
December 29, 2025	Disclosure of Respondent's rebuttal expert reports, if any
January 5, 2026	Expert witness depositions may commence
January 16, 2026	Close of all discovery
February 19, 2026	Complainant's brief, proposed findings of fact, and appendix
March 20, 2026	Respondent's opposition brief, responses to proposed findings of fact, proposed findings of fact, and appendix
April 3, 2026	Complainant's reply brief and responses to proposed findings of fact

CONCLUSION

For the foregoing reasons, the parties respectfully request that the Presiding Officer grant the instant motion and extend the deadlines in this matter.

Dated: October 10, 2026

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